IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

C.A. (CAA) No. 21/BB/2018
Under Section 230 to 232 of the Companies Act, 2013

Coram: Hon'ble Shri Rajeshwara Rao Vittanala, Member (Judicial)

IN THE MATTER OF SCHEME OF AMALGAMATION
OF
HICAL INFRA PRIVATE LIMITED
AND
WINDTREE INFRA PRIVATE LIMITD

Between

M/s HICAL INFRA PRIVATE LIMITED,
Survey No.46, 47 (Part) Phase II,
Electronic City, Bengaluru,
Karnataka-560 100 - **Applicant Company No.1**

And

M/s Windtree Infra Private Limited,
Survey No.46, 47 (Part) Phase II,
Electronic City, Bengaluru,
Karnataka-560 100. - **Applicant Company No.2**

Counsel for the Applicant : Shri Saji P. John, SPJ Legal, Advocates,
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#30, Prestige Meridian II,
M.G. Road,
Bengaluru – 560 001.

Order delivered on: 4th May, 2018

O R D E R

Per: Shri Rajeshwara Rao Vittanala, Member (Judicial):

1. The Company Application bearing CA (CAA) No.21/BB/2018, is jointly filed by M/s. Hical Infra Private Limited (Applicant No.1) and M/s. Windtree Infra Private Limited (Applicant No.2) under Section 230-232 of Companies Act, 2013, by inter-alia seeking:

i) to dispense with the meeting of Equity Shareholders of the applicant Companies No.1 and 2; and

ii) to dispense with the meeting of the Unsecured Creditors of Applicant No.1 company;

2. The brief facts as mentioned in the instant Company application are as follows;

(a) The Applicant No.1 Company was incorporated on 02nd April, 1990 under the Companies Act, 1956 under the name and style "Hical Magnetics Private Limited" with the Registrar of Companies, Bangalore. The name was subsequently changed to "Hical Technologies Private Limited" on 25th July, 2006. Further, the name of the Company was changed to its present "Hical Infra Private Limited" on 24th November, 2015. The Registered Office of the Applicant No.1 Company is currently situated at Survey No.46, 47 (Part) Phase II, Electronic City, Bengaluru, Karnataka – 560 100.

(b) The Authorised share capital of the Applicant No.1 Company as on 31st March, 2017 is Rs.10,10,00,000/- divided into 1,01,00,000 Equity Shares of INR 10/- each. Its Issued, Subscribed and Paid-up share capital is Rs.4,94,29,750/- divided into 49,42,975 Equity Shares of INR 10/- each.

(c) The main objects of the Applicant No.1 Company is to carry on business as manufacturers, buyers, sellers, indentors, hirers, repairers, exporters, system engineers, system analysts and consultants of all types of electronics, telecommunications, data-communications, etc.

3. (a) The Applicant No.2 Company was incorporated on 15th September, 2017 under the Companies Act, 2013. The Registered Office of the Applicant No.2 Company is currently situated at Survey No.46 47 (Part) Phase II, Electronic City, Bengaluru, Karnataka – 560 100.

(b) The Authorised Share Capital of the Applicant No.2 Company as on 15th September, 2017 is Rs.1,00,000/- divided into 10,000 Equity Shares of INR 10/- each. Its Issued, Subscribed and Paid-up share capital is Rs.1,00,000/- divided into 10,000 Equity Shares of INR 10/- each.

(c) The main objects of the Applicant No.2 Company is to carry on the business of renting and leasing of property with any other company/firm/individual/consultant whether local or foreign; and to carry on the business of proprietors of lands, flats, massionettes,

dwelling houses, shops, offices, industrial estates, commercial complex, etc. A copy of the Memorandum and Articles of Association of the Applicant No.2 Company is marked as Annexure-D to the main petition.

4. The Board of Directors of the Applicants No.1 and 2 Companies have approved the Scheme of Arrangement providing for demerger of Outgroup Leasing Business Division from Hical Infra Private Limited and vesting of the same into Windtree Infra Private Limited at their meetings held on 12th March, 2018. The certified true copies of the Board Resolution of the both the Applicant No.1 and 2 companies are marked as Annexures-F & G respectively. The Scheme of Arrangement is also produced and marked as Annexure-H.

a) It is stated that there are **4 (four) Equity Shareholders** in the Applicant No. 1 and 2 Companies who have given their consent in writing by way of affidavit to the Scheme. The list of shareholders duly certified by the Chartered Accountant and the consent affidavits given by the equity shareholders giving their consent to the proposed Scheme are produced and collectively marked as (**Annexure J and K Series respectively).**

b) It is submitted that there is 1 (one) **Secured Creditor** in the First Applicant Company. A certificate of a Chartered Accountant, certifying that there is only one Secured Creditor for the of total credit value of INR 5,85,63,385/- in the First Applicant Company is produced and marked as (**ANNEXURE L). The said Secured Creditor (SBI) has given its consent affidavit and same is produced along with memo dated 1.5.2018.**

c) It is stated that there are 2 (two) **Unsecured Creditor** in the First Applicant Company. A Certificate of Chartered Accountant, certifying that there is only two Unsecured Creditor of total credit value of INR 5,97,50,000/- (Rupees Five crores ninety seven lakhs fifty thousand only) which has given its consent in writing by way of affidavit to the Scheme. The list of Unsecured Creditors for the Applicant Company and the consent affidavits given by the Unsecured Creditor are produced and marked as (**Annexure M.**).

d) It is submitted that there are No **Secured** and **Unsecured Creditors** in the Second Applicant Company. A certificate of a Chartered Accountant, certifying that there are no Secured and Unsecured Creditors for the Second Applicant Company is produced and marked as **(ANNEXURE N).**

e) The applicants have stated that there is no investigating proceedings pending against the Applicants No1 and 2 Companies under Sections 235 to 251 or any other provisions of the Companies Act, 1956 or Sections 206 to 229 of the Companies Act, 2013. Therefore, the present Company Application is filed seeking relief as stated supra.

5. Heard Shri Saji P. John, the learned counsel for the applicant and have carefully perused the pleadings and the material records and the extant provisions of sections of the Companies Act, 2013.

6. Upon the Scheme becoming fully effective, in consideration of the demerger, transfer and vesting of the Demerged Undertaking of the Demerged Company into the Resulting company in terms of the Scheme, the Resulting Company shall, without any further act or deed, issue and allot 1 (one) equity share of the face value of Rs.10/- each credited as fully paid-up of the resulting Company for every 5 (five) equity shares of Rs.10/- each fully paid-up held up by the equity shareholders whose name appear in the Register of Members of Demerged Company as on the Record date or his/her heirs, executors, administrators or successors-in-title, as the case may be.

7. The Applicant No.1 Company has 4 (four) equity shareholders viz., S/Shri 1. Shashikiran Mullur, 2) Sujaya Shashikiran, 3) V.B. Venkatesh and 4) Bharatesh M.S. and all the shareholders have given their respective affidavits which are filed in paged 141 to 153. Similarly, the applicant No.2 company have only 4 (four) equity shareholders, i.e., S/Shri 1. Shashikiran Mullur, 2) Sujaya Shashikiran, 3) V.B. Venkatesh and 4) Bharatesh M.S. and all the shareholders have given their respective affidavits which appear at pages 156 to 167 in the application. It is also stated that all the lists of shareholders are duly certified by the

Chartered Accountant. Further, the consent affidavits have been verified and certified by the Chartered Accountant.

8. The learned counsel further submits that the applicant No.1 company has one secured creditor owes an amount of Rs.5,85,93,690/- (Rupees five crores eighty five lakhs ninety three thousand six hundred and ninety only) which include the principal amount of Rs.5,85,63,385/- (Rupees five crores eighty five lakhs sixty three thousand three hundred and eighty five only). The State Bank of India, Commercial Branch, Hudson Circle, Bangalore, has given no objection affidavit dated 30th April, 2018, for the proposed Scheme of Arrangement in question.

9. There are 2 (two) **Unsecured Creditors** in the First Applicant Company. A Certificate of Chartered Accountant, certifying that there are only two Unsecured Creditors of total credit value of INR 5,97,50,000/- (Rupees Five crores ninety seven lakhs fifty thousand only) who have given their consent in writing by way of affidavit to the Scheme. The list of Unsecured Creditors for the Applicant Company and the consent affidavits given by the Unsecured Creditors are produced herewith and marked as (**Annexure M**).

10. There are No **Secured** and **Unsecured Creditors** in the Second Applicant Company. A certificate of a Chartered Accountant, certifying that there are no Secured and Unsecured Creditors for the Second Applicant Company is produced herewith and marked as **(ANNEXURE N).** Therefore, the learned counsel urged the Tribunal to dispense with the meetings as prayed for.

11. On perusal of the documents filed and after hearing the learned counsel for the applicant, the Tribunal is of the opinion that there is no necessity to convene any meeting of all the concerned parties as they have all given their consent for the proposed scheme of arrangement. Therefore, there is no necessity again to order to convene the meeting of the same as it will serve no purpose. Therefore, the applicants are entitled for the relief as prayed for.

12. In the result, by exercising powers conferred on the Tribunal, U/s 230-232 of the Companies Act, 2013, the Company Application bearing CA(CAA) No.20/BB/2018 is disposed of with the following directions:

a) Hereby dispensed with the convening of the meeting of the Equity Shareholders of the Applicant No.1 and 2 Companies;

b) Hereby dispensed with convening of the meeting of Secured and un-secured creditors of Applicant No.1 Company.

c) This order, would not preclude any party, who is aggrieved by the order, to approach the Tribunal to file an Interim Application seeking appropriate directions.

(RAJESHWARA RAO VITTANALA)
MEMBER (JUDICIAL)

psp.